

ATPL EASA STUDY GUIDE | 010 - AIR LAW

Chapter 1: International Agreements & ICAO

Syllabus Source: CAE Oxford (pp. 21-52) | Pass Target: >= 90% AviationExam

1. HISTORICAL EVOLUTION & CHICAGO CONVENTION (1944)

Prior to World War II, international aviation was governed by fragmented regional treaties such as the 1919 Paris Convention (which first codified national sovereignty over airspace) and the 1928 Havana Convention. The massive technological advances of World War II created an urgent need for a unified global framework. On 7 December 1944, representatives of 52 Allied and neutral nations signed the Convention on International Civil Aviation in Chicago. It entered into force on 4 April 1947 after ratification by the 26th State, officially establishing the International Civil Aviation Organization (ICAO).

[*] OFFICIAL DEFINITION - Preamble of the Chicago Convention

WHEREAS the future development of international civil aviation can greatly help to create and preserve friendship and understanding among the nations and peoples of the world, yet its abuse can become a threat to the general security; ... THEREFORE, the undersigned governments have concluded certain principles and arrangements in order that international civil aviation may be developed in a safe and orderly manner.

2. EXHAUSTIVE ANALYSIS OF CHICAGO CONVENTION ARTICLES

The Chicago Convention consists of 96 articles divided into four parts. The following 22 articles are frequently and rigorously tested in EASA examinations:

Article	Official Legal Requirement & Exam Core
Art. 1: Sovereignty	Every Contracting State has complete and exclusive sovereignty over the airspace above its territory.
Art. 2: Territory	Territory consists of the land areas and adjacent territorial waters (up to 12 NM) under the sovereignty of the State. Airspace over the High Seas is international and has no State sovereignty.
Art. 3: Civil vs State Aircraft	Applies SOLELY to civil aircraft. Aircraft used in military, customs, and police services are deemed State aircraft. State aircraft cannot fly over or land on foreign territory without authorization by special agreement.
Art. 3 bis: Non-use of Weapons	Contracting States must refrain from resorting to the use of weapons against civil aircraft in flight. In case of interception, the lives of persons on board must not be endangered. States may require landing at a designated airport.
Art. 5: Non-scheduled Flights	Aircraft of Contracting States not engaged in scheduled international services have the right to fly into or in transit non-stop across territory and make stops for non-traffic purposes without prior permission, subject to the right of the State to require landing.
Art. 6: Scheduled Air Services	No scheduled international air service may be operated over or into the territory of a Contracting State except with special permission or authorization of that State.
Art. 7: Cabotage	Each Contracting State has the right to refuse permission to the aircraft of other States to take on passengers, cargo, and mail destined for another point within its own territory for remuneration.

Art. 8: Pilotless Aircraft	No aircraft capable of being flown without a pilot shall be flown without a pilot over the territory of a Contracting State without special authorization.
Art. 9: Prohibited Areas	States may restrict or prohibit aircraft from flying over certain areas of territory for reasons of military necessity or public safety, provided no distinction is made between national and foreign aircraft.

Article	Official Legal Requirement & Exam Core (Continued)
Art. 10: Customs Airports	Every aircraft entering a State must land at a designated customs airport if required by regulations.
Art. 11: Applicability of Air Regulations	Domestic air laws and regulations apply to all aircraft without distinction as to nationality.
Art. 12: Rules of the Air	Over the High Seas, the rules in force are those established by ICAO (Annex 2) WITHOUT EXCEPTION. Over land, national rules apply.
Art. 13: Entry and Clearance	The laws and regulations of a State regarding immigration, customs, quarantine, and passports must be complied with upon entry, departure, or while within territory.
Art. 16: Search of Aircraft	Authorities of a Contracting State have the right to search foreign aircraft upon landing or departure without causing unreasonable delay.
Art. 22 & 23: Facilitation	States agree to adopt all practicable measures to facilitate air navigation and prevent unnecessary delays.
Art. 24: Customs Duties on Fuel	Fuel, lubricating oils, spare parts, and regular equipment on board an aircraft of a Contracting State on arrival shall be exempt from customs duty and inspection fees.
Art. 29: Documents on Board	Every aircraft on an international flight MUST carry: 1) Certificate of Registration, 2) Certificate of Airworthiness, 3) Crew Licences, 4) Journey Log Book, 5) Aircraft Radio Licence, 6) Passenger Manifest (names and places of embarkation/destination), 7) Cargo Manifest.
Art. 31 & 32: C of A and Licences	Every aircraft must have a valid C of A issued by State of Registry. Flight crew must hold licences issued or validated by State of Registry.
Art. 33: Mutual Recognition	Certificates of Airworthiness and licences issued or validated by the State of Registry MUST be recognized as valid by other States, provided the requirements equal or exceed minimum ICAO standards.
Art. 37: Adoption of Standards	ICAO shall adopt International Standards and Recommended Practices (SARPs) in Annexes.
Art. 38: Notification of Differences	Any State that finds it impracticable to comply with an international Standard MUST immediately give notification to ICAO of differences. Notification is mandatory for Standards.
Art. 83 bis: Transfer of Functions	Enables transfer of State of Registry functions (licensing, airworthiness, ops) to the State of the Operator in cases of dry/wet lease, charter, or interchange of aircraft.

[!] EXAM TRAP (AVIATIONEXAM) - AviationExam Traps on Articles 3, 7, 12, 24 and 38

- State Aircraft Status: Military, police, and customs are State aircraft. An unarmed military transport carrying civilian cargo is STILL a State aircraft! - High Seas Jurisdiction: No State has sovereignty over the High Seas. ICAO Annex 2 applies universally without exception. - Customs on Fuel: Fuel inside aircraft tanks is exempt from customs duties. Fuel unloaded into ground tanks is NOT exempt! - Article 38 Differences: Compulsory ONLY for Standards (compulsory). Recommended Practices do NOT legally require formal notification under Art. 38.

3. THE NINE FREEDOMS OF THE AIR

Commercial transit and traffic rights are granted through bilateral Air Transport Agreements (e.g. Bermuda Agreements). ICAO classifies these traffic rights into 9 distinct Freedoms of the Air:

Freedom	Category	Official ICAO Definition	Practical Airline Scenario
1st Freedom (Overflight)	Technical	The right to fly across the territory of another State without landing.	British Airways flying London to Athens over France.
2nd Freedom (Tech Stop)	Technical	The right to land in foreign territory for non-traffic purposes (refueling, crew rest, mechanical).	Iberia landing in the Azores (Portugal) for fuel en-route to South America.
3rd Freedom (Outbound Traffic)	Commercial	The right to put down passengers, mail, and cargo taken on in the airline's Home State into a foreign State.	Lufthansa flying passengers from Frankfurt to New York.
4th Freedom (Inbound Traffic)	Commercial	The right to take on passengers, mail, and cargo in a foreign State and put them down in the airline's Home State.	Lufthansa flying passengers from New York to Frankfurt.
5th Freedom (Intermediate Traffic)	Commercial	The right to carry traffic between two foreign States on a flight originating or terminating in the airline's Home State.	Emirates flying Dubai -> London -> New York, boarding commercial passengers in London for New York.
6th Freedom (Hub Traffic)	Extended	The right to carry traffic between two foreign States via a commercial transit stop in the airline's Home State.	Air France carrying passengers from Madrid to Tokyo via Paris CDG hub.
7th Freedom (Stand-Alone Foreign)	Extended	The right to carry traffic between two foreign States entirely outside the Home State, with no connection to home.	Ryanair (Irish airline) operating scheduled flights between Rome (Italy) and Berlin (Germany).
8th Freedom (Consecutive Cabotage)	Cabotage	The right to carry traffic between two domestic points in a foreign State on a flight starting or ending in Home State.	Air France operating Paris -> Madrid -> Barcelona, carrying passengers between Madrid and Barcelona.
9th Freedom (Pure Cabotage)	Cabotage	The right to operate domestic passenger services entirely within a foreign State without any connection to Home State.	Lufthansa operating scheduled domestic flights between Madrid and Seville in Spain.

4. STRUCTURE AND GOVERNANCE OF ICAO

ICAO is a specialized agency of the United Nations headquartered in Montreal, Quebec, Canada. Its governance consists of three principal organs:

- The Assembly: Sovereign body comprising all 193 Contracting States. Meets once every 3 YEARS. Each State has ONE vote. Key functions: elects the Council, reviews technical work, approves triennial budget, and amends the Convention by a 2/3 vote.

- The Council: Permanent governing executive body responsible to the Assembly, comprising 36 Contracting States elected for a 3-year term. Categories of election: 1) States of chief importance in air transport, 2) States making largest contribution to provision of facilities, 3) States ensuring geographic representation. Key functions: ADOPTS ANNEXES (SARPs) by a 2/3 vote, appoints the Secretary General, manages finances, and investigates any situation presenting avoidable obstacles to international air navigation.
- Air Navigation Commission (ANC): Composed of 19 independent technical experts nominated by Contracting States and appointed by the Council. Responsible for drafting and updating all Annexes and PANS.
- Regional Offices: 7 offices: Paris (EUR/NAT), Dakar (WACAF), Nairobi (ESAF), Cairo (MID), Bangkok (APAC), Lima (SAM), and Mexico City (NACC).

5. MASTER CATALOGUE: ALL 19 ICAO ANNEXES

Annex	Title	Core Scope & Key EASA Exam Focus
Annex 1	Personnel Licensing	Licences for flight crew, ATCOs, flight engineers, maintenance engineers; medical classes 1, 2, 3.
Annex 2	Rules of the Air	Visual flight rules (VFR), instrument flight rules (IFR), right of way, lights, signals, interception.
Annex 3	Meteorological Service	METAR, TAF, SIGMET, AIRMET, GAMET, aerodrome forecasts, world area forecast system (WAFS).
Annex 4	Aeronautical Charts	17 chart types including SID, STAR, Instrument Approach, Aerodrome Obstacle Charts Type A and B.
Annex 5	Units of Measurement	SI units and non-SI alternatives: altitude in feet, speed in knots, distance in nautical miles.
Annex 6	Operation of Aircraft	Part I: Commercial Air Transport Aeroplanes, Part II: General Aviation, Part III: Helicopters.
Annex 7	Aircraft Nationality & Registration	Lettering height (30 cm wings/fuselage), hyphen rule, fireproof identification plate near entrance.
Annex 8	Airworthiness of Aircraft	Type Certificates, C of A, continuing airworthiness, applicability to MTOM > 5,700 kg, multi-engine.
Annex 9	Facilitation	Simplification of customs, immigration, General Declaration, crew identity, transit rules.
Annex 10	Aeronautical Telecommunications	Vol I: Nav Aids (ILS, VOR, DME), Vol II: Voice procedures, Vol III: Data, Vol IV: Radar, Vol V: Spectrum.
Annex 11	Air Traffic Services	Air Traffic Control (ATC), Flight Information Service (FIS), Alerting Service, Airspace classes A-G.
Annex 12	Search and Rescue (SAR)	Rescue Coordination Centres (RCC), emergency phases (INCERFA, ALERFA, DETRESFA), search patterns.
Annex 13	Aircraft Accident Investigation	Accident/Incident definitions, notification, State of Occurrence, sole objective: PREVENT recurrence.
Annex 14	Aerodromes	Vol I: Aerodrome Design & Operations (runways, taxiways, markings, lighting, RFFS), Vol II: Heliports.
Annex 15	Aeronautical Information Services	AIP (GEN, ENR, AD), AIRAC 28-day cycle, NOTAM, SNOWTAM, ASHTAM, AICs, pre-flight bulletins.
Annex 16	Environmental Protection	Vol I: Aircraft noise certification (Chapters 3, 4, 14), Vol II: Engine emissions, Vol III: CO2 emissions.
Annex 17	Security	Safeguarding civil aviation against acts of unlawful interference, cockpit door security, screening.
Annex 18	Dangerous Goods	Technical Instructions for Safe Transport of Dangerous Goods by Air, packaging, labelling, NOTOC.

Annex 19**Safety Management**

State Safety Programmes (SSP) and Safety Management Systems (SMS) for operators and aerodromes.

6. INTERNATIONAL PENAL AND LIABILITY CONVENTIONS

Convention & Year	Legal Scope	Key Principles & Detailed Exam Specifics
Tokyo Convention (1963)	Offences Committed on Board Aircraft	Jurisdiction of the State of Registry over criminal acts committed on board. Bestows extensive powers on the Pilot-in-Command: authority to impose reasonable restraint on disruptive passengers, require assistance from crew or passengers, disembark offenders in any Contracting State, and deliver serious offenders to police authorities.
The Hague Convention (1970)	Suppression of Unlawful Seizure (Hijacking)	Establishes universal jurisdiction over hijackers. Any State where the offender is found must either extradite the offender or prosecute without exception ('Aut dedere aut judicare'). Defines hijacking as an extraditable offence in all bilateral treaties.
Montreal Convention (1971)	Suppression of Unlawful Acts Against Safety	Criminalizes acts of sabotage, violence against crew/passengers that endanger flight safety, placing bombs on aircraft, destruction of aircraft in service, and destruction of air navigation facilities.
Rome Convention (1933 / 1952)	Damage Caused by Foreign Aircraft to 3rd Parties	Strict (absolute) liability of aircraft operators for surface damage caused to persons or property on the ground. Proof of fault is not required; victim needs only prove damage caused by aircraft or falling objects.
Warsaw Convention (1929)	Air Carrier Liability (Historic)	Unified liability limits for passenger injury/death (originally 125,000 gold francs), checked baggage, and cargo loss. Established liability presumption against carrier unless carrier proves all necessary measures were taken.
Montreal Convention (1999)	Modernised Air Carrier Liability	Completely modernized passenger carrier liability into a TWO-TIER SYSTEM using SDRs (Special Drawing Rights): Tier 1 (Strict liability up to ~128,821 SDRs, carrier cannot contest), Tier 2 (Unlimited liability based on fault, carrier liable unless proving damage was not due to its negligence). Eliminates passenger ticket technicality defenses.

7. EUROPEAN AVIATION REGULATORY ARCHITECTURE

- **EASA (European Union Aviation Safety Agency):** Headquartered in Cologne, Germany. Established by Basic Regulation (EU) 2018/1139. Responsible for: drafting European aviation legislation (Cover Regulations, AMC & GM), issuing Type Certificates for aircraft/engines/propellers, approving design and production organizations (Part-21), approving non-EU maintenance organizations, and standardization inspections across EU National Aviation Authorities (NAAs).
- **EUROCONTROL:** Headquartered in Brussels, Belgium. Founded in 1960. 41 Member States. Operates the Network Manager Operations Centre (NMOC) managing air traffic flow management (ATFM) slots across Europe to prevent sector overload, and the Central Route Charges Office (CRCO) collecting overflight navigation charges.

- ECAC (European Civil Aviation Conference): Established in 1955, located in Paris. 44 European States. Consultative intergovernmental body promoting safety harmonization, aviation security audit programs, and environmental policies.

AviationExam 10-Question Comprehensive Drill

- Q1: Who adopts ICAO Annexes?: The Council of ICAO by a two-thirds (2/3) majority vote.
- Q2: Under which Article must a State notify differences to ICAO Standards?: Article 38 of the Chicago Convention.
- Q3: Does the Chicago Convention apply to military or customs aircraft?: NO. Under Article 3, it applies exclusively to civil aircraft.
- Q4: Over the High Seas, whose rules of the air apply?: ICAO Rules of the Air (Annex 2) apply without exception (Article 12).
- Q5: Carrying passengers between two domestic points in a foreign State is which freedom?: 8th Freedom (consecutive cabotage) or 9th Freedom (pure stand-alone cabotage).
- Q6: Which Convention gives the Pilot-in-Command authority to restrain unruly passengers?: The Tokyo Convention (1963).
- Q7: Under the Montreal Convention 1999, what is the carrier's liability system?: A two-tier system: strict liability up to ~128,821 SDRs, and unlimited fault-based liability thereafter.
- Q8: What is the purpose of Article 83 bis?: Allows transfer of State of Registry regulatory functions to the State of the Operator in aircraft leases.
- Q9: What is the legal status of an ICAO Recommended Practice?: Desirable, but not essential. Notification of differences under Art. 38 is not strictly mandatory.
- Q10: Where are EASA and EUROCONTROL headquartered?: EASA is in Cologne (Germany); EUROCONTROL is in Brussels (Belgium).